

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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LYNDON FRASER,

Plaintiff,

-against-

CITY OF NEW YORK; CHRISTOPHER
BURTON; and JOHN and JANE DOE 1 through
10, individually and in their official capacities (the
names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.
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**COMPLAINT AND
JURY DEMAND**

ECF CASE

Docket No.
15-cv-4011

Plaintiff Lyndon Fraser, by his attorney Joseph Indusi, Esq. of London Indusi, LLP, for his
complaint against the above Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 and 42 U.S. §1988 for the violation of his civil rights protected by the Fourth and Fourteenth Amendments to the United States Constitution, in addition to violations of the Laws of the State of New York.

2. The claim arises from a February 13, 2015 incident in which defendants, acting under color of state law, unlawfully stopped Mr. Fraser's vehicle for no reason. The Defendants opened the car door and sprayed Mr. Fraser with mace, ripped him out of the vehicle, and threw his face against the car door. The Defendants unlawfully placed Mr. Fraser under arrest. After being assaulted and battered by the Defendants, Mr. Fraser was wrongfully arrested and held in police custody for approximately twenty-four (24) hours. On February 14, 2015, Mr. Fraser received an

Adjournment of Contemplation of Dismissal.

3. Plaintiff seeks monetary damages (compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988 and the Laws of the State of New York.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a) and the doctrine of pendant jurisdiction.

VENUE

6. Venue is laid within the Eastern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District.

PARTIES

7. Plaintiff Lyndon Frasier ("Plaintiff" or "Mr. Fraser") resided at all times in Kings County, in the City and State of New York.

8. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.

9. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives

and supervisory officers as well as the individually named Defendants herein.

10. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

11. Defendant Christopher Burton (“Burton”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Burton was, at the time relevant herein, a Police Officer under Shield # 16667 of the 63rd Precinct. Defendant Burton is sued in his individual and official capacity.

12. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 10.

13. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

14. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

15. Within 90 days of the events rising to these claims, plaintiff filed written notices of claim with the New York City Office of the Comptroller.

16. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

17. This action has been commenced within one year and ninety days after the happening

of the events upon which the claims are based.

FACTUAL CHARGES

18. On February 13, 2015, at approximately 5:00 p.m., Mr. Fraser was driving his 2006 White Cadillac CTS on Church Avenue and Kings Highway in Brooklyn, New York.

19. Defendants, including Burton, pulled over Mr. Frasier's vehicle.

20. The Defendants did not observe Mr. Fraser commit a V.T.L. infraction or commit any crimes.

21. Mr. Fraser did not commit any crime or violate any law or local ordinance.

22. Defendant Burton asked for Mr. Fraser's license and registration.

23. Mr. Fraser complied and handed Defendant Burton his license and registration, which were both valid.

24. An unidentified defendant approached the car, and opens the driver side car door.

25. Defendants, including Burton and an unidentified defendant, sprayed "O.C." spray at Mr. Fraser from a distance of approximately 2 inches while Mr. Fraser is still seated in the vehicle with his seatbelt on.

26. An unidentified defendant violently pulls Mr. Fraser out of the vehicle, and throws Mr. Fraser up against the back of the car.

27. When Defendants threw Mr. Fraser up against the car, his face hit the car causing physical injury, pain and suffering.

28. The Defendants, acting in concert, unlawfully handcuffed Mr. Fraser.

29. Mr. Fraser did not resist arrest.

30. Mr. Frasier was transported to central bookings.

31. Mr. Frasier's vehicle was seized by the Defendants and taken to the precinct.

32. While Plaintiff was in central booking, Defendants, acting in concert and with malice, conveyed and forwarded false information to prosecutors in order to have plaintiff prosecuted for Obstructing Governmental Administration in the Second Degree and Resisting Arrest.

33. Mr. Frasier spent approximately 24 hours unlawfully confined until he was arraigned on those charges.

34. At his arraignment, Mr. Frasier reluctantly accepted an Adjournment in Contemplation of Dismissal.

35. While Mr. Frasier was in central bookings, the Defendants caused property damage to Mr. Frasier's 2006 White Cadillac CTS, including, but not limited to a broken radiator, seats taken out, and upholstery ripped.

36. During all of the events described, defendants acted maliciously and with intent to injure plaintiff.

37. Upon information and belief, at all times relevant hereto, Defendants were involved in the decision to arrest plaintiff without probable cause and the decision to use excessive force.

38. Upon information and belief, at all times relevant hereto, Defendants failed to intervene in the actions of his fellow officers when they observed them arresting plaintiff without probable cause and using excessive force.

39. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages: Violation of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, Violation of New York State Law, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and property damage.

FIRST CAUSE OF ACTION

False Arrest Under
42 U.S.C. § 1983

40. The above paragraphs are here incorporated by reference as though fully set forth.

41. The officer defendants wrongfully and illegally arrested, detained and imprisoned plaintiff.

42. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of plaintiff was carried out without a valid warrant, without plaintiff's consent, and without probable cause or reasonable suspicion.

43. At all relevant time's defendants acted forcibly in apprehending, arresting, and imprisoning plaintiff.

44. Throughout this period, plaintiff was unlawfully, wrongfully, and unjustifiably held under arrest, deprived of his liberty, imprisoned and falsely charged.

45. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

46. The above paragraphs are here incorporated by reference as though fully set forth.

47. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

48. Plaintiff was conscious of his confinement.

49. Plaintiff did not consent to his confinement.

50. Plaintiff's arrest and false imprisonment was not otherwise privileged.

51. Defendant City, as employer of Officer Defendants, is responsible for their

wrongdoing under the doctrine of *respondeat superior*.

52. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Denial of Right to Fair Trial Under
42 U.S.C. § 1983

53. The above paragraphs are here incorporated by reference as though fully set forth.

54. The individual Defendants created false evidence against Plaintiff, to wit, sworn documents and testimony alleging Mr. Fraser committed unlawful acts.

55. The individual Defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

56. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual Defendants violated Plaintiff's right to a fair trial under the Due Process Clause of the Fourteenth Amendments of the United States Constitution.

57. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION
Excessive Force Under
42 U.S.C. § 1983

58. The above paragraphs are here incorporated by reference as though fully set forth.

59. The individual Defendants used excessive, unreasonable and unnecessary force with plaintiff.

60. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.

61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the

damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

62. The above paragraphs are here incorporated by reference as though fully set forth.

63. The individual defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

64. The individual defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

65. The individual Defendants used excessive and unnecessary force with plaintiff.

66. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Negligent Hiring/Training/Retention Under
New York State Law

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

70. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

71. Upon information and belief, Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

72. Upon information and belief, Defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

73. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

74. Plaintiff repeats and re-alleges each and every allegation as if fully set forth herein.

75. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

76. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution.

77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, plaintiff respectfully requests judgment against defendants, jointly and severally, as follows:

- A. In favor of plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- B. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- C. Awarding Plaintiff compensatory damages in an amount to be determined by a jury;

- D. Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- E. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: July 8, 2015
Brooklyn New York

Respectfully submitted,

/s/ Joseph Indusi, Esq.

Joseph Indusi, Esq.

Bar Number: JI6499

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